

Membership Code, 2026

Amended and Restated Membership Code of the Fort McMurray No. 468 First Nation, made under section 10 of the Indian Act

Draft for consent by a majority of the Electors | September 30, 2026

Status	Draft amendment and restatement of the Membership Code of the Fort McMurray Indian Band, under which the First Nation has controlled its own membership under section 10 of the Indian Act.
Adoption route	Section 13 of the existing Membership Code: amendments prepared and presented by Council on the written request of twenty-five percent (25%) of the Electors, three (3) months' posted notice, then consent of a majority of the Electors of the First Nation by referendum or petition.
Comes into force	On the date the Electoral Officer certifies that a majority of the Electors of the First Nation have consented.
Notes	Explanatory Notes at the end are not part of the Code.
Legal review	To be reviewed by legal counsel before adoption.

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MEMBERSHIP CODE OF THE FORT McMURRAY No. 468 FIRST NATION, 2026

WHEREAS the Fort McMurray No. 468 First Nation has the inherent right to determine its own citizenship and membership, which is an Aboriginal and Treaty right recognized and affirmed by section 35 of the *Constitution Act, 1982*; and

WHEREAS the First Nation, then known as the Fort McMurray Indian Band, assumed control of its own membership under section 10 of the *Indian Act*, R.S.C. 1985, c. I-5, with the consent of a majority of its electors, and established a written Membership Code; and

WHEREAS section 13 of that Membership Code provides that amendments may be prepared and presented by Council upon the written request of twenty-five percent (25%) of the Electors, that three (3) months' notice of the proposed amendments shall be given, and that amendments shall be consented to by a majority of the Electors of the First Nation by way of referendum or petition; and

WHEREAS section 10(4) of the *Indian Act* provides that membership rules may not deprive any person who had the right to have their name entered in the Band List, immediately before the rules were established, of that right by reason only of a situation that existed or an action that was taken before the rules came into force; and

WHEREAS the Electors wish to amend and restate the Membership Code; and

WHEREAS the written request of at least twenty-five percent (25%) of the Electors was delivered to Council on _____, 20____, notice of these amendments was posted on _____, 20____, and a majority of the Electors of the First Nation consented to them by [referendum / petition] on _____, 20____;

NOW THEREFORE the Membership Code of the Fort McMurray No. 468 First Nation is amended and restated as follows:

Part 1 Interpretation

1 Citation and Principles

- 1.1 This Code may be cited as the *Membership Code of the Fort McMurray No. 468 First Nation, 2026*. It amends and restates the Membership Code of the Fort McMurray Indian Band in its entirety.
- 1.2 This Code shall be interpreted and applied in accordance with the principles of fundamental fairness, the rules of natural justice, and the customs, values, and traditions of the First Nation.
- 1.3 This Code shall not be applied or interpreted in any manner that abrogates or denies any existing Treaty or Aboriginal right of the Members of the First Nation.
- 1.4 Where there is doubt about whether a person is entitled to membership, the doubt shall be resolved in favour of keeping families together and in favour of the person's connection to the First Nation.

2 Definitions

- 2.1 In this Code:
 - (a) "Appeals Officer" means the Membership Appeals Officer appointed under section 16;
 - (b) "Child" includes a child born inside or outside marriage, a child legally adopted, and a child adopted in accordance with the custom of the First Nation or of another First Nation;
 - (c) "Council" means the Chief and Councillors of the First Nation;
 - (d) "Elder" means a Member who is at least fifty (50) years of age and is respected for their knowledge of the families, practices, customs, and traditions of the First Nation;
 - (e) "Elector" means a Member who is at least eighteen (18) years of age;
 - (f) "Electoral Officer" means the Electoral Officer under the Customary Election Regulations of the First Nation, or for any vote under this Code held before a standing Electoral Officer is appointed, an independent electoral officer appointed by Council who meets the qualifications in those Regulations;
 - (g) "First Nation" means the Fort McMurray No. 468 First Nation, formerly the Fort McMurray Indian Band;
 - (h) "Indian" means a person who is registered, or entitled to be registered, as an Indian under the *Indian Act*;
 - (i) "Member" means a person whose name appears on the Membership List;
 - (j) "Membership Clerk" means the employee of the First Nation who maintains the Membership List, also called the Indian Registration Administrator;
 - (k) "Membership Committee" means the Elders Membership Committee established under section 13;
 - (l) "Membership List" means the list of Members of the First Nation maintained under this Code; and
 - (m) "Spouse" means a person who is legally married to a Member, or who has lived with a Member in a conjugal relationship for a continuous period of at least one (1) year.

Part 2

Existing Members and Acquired Rights

3 Existing Members

- 3.1 Every person whose name was on the Membership List, or who was entitled to have their name entered on it, immediately before this Code came into force remains a Member and keeps that entitlement.
- 3.2 This Part takes precedence over every other provision of this Code. No person described in section 3.1 may be removed from the Membership List because of this Code, or because of any situation that existed or action that was taken before this Code came into force.
- 3.3 A person described in section 3.1 whose name was left off the Membership List may apply at any time to have it entered, and there is no time limit on such an application.

4 Removal from the Membership List

- 4.1 A name may be removed from the Membership List only:
- (a) on the death of the Member, on proof of death;
 - (b) on the voluntary resignation of the Member under Part 7;
 - (c) on the transfer of the Member to another First Nation, on proof that the other First Nation has entered the Member's name on its list; or
 - (d) where the Membership Committee finds, after notice and a hearing, that the name was entered as a result of fraud or a material false statement by the person, and the person was not otherwise entitled to membership. That finding may be appealed under Part 5.

Part 3

Entitlement to Membership

5 Persons Entitled as of Right

- 5.1 The following persons are entitled to have their names entered on the Membership List on providing the proof required by section 9, without any discretionary decision:
- (a) a Child of two (2) parents who are both Members;
 - (b) a Child of one (1) parent who is a Member, where the Child is an Indian;
 - (c) a person who is an Indian and whose name was removed or omitted from the Band List of the First Nation, or of any band from which the First Nation was formed, because of a provision of the *Indian Act* that has since been repealed or amended, including provisions under which women lost status on marriage, children lost status because of their parents' or grandparents' marriages, or persons were enfranchised; and
 - (d) a Child of a person described in paragraph (c), where the Child is an Indian.
- 5.2 A Child of a Member who is not an Indian at the time of application shall be placed on a list of persons eligible for membership, and shall be entitled under section 5.1 as soon as they become an Indian.

6 Persons Eligible to Apply

- 6.1 The following persons may apply for membership, and their applications shall be decided by the Membership Committee under Part 4:
- (a) a Spouse of a Member, where the Spouse is an Indian, has the written support of the Member, and has agreed to give up membership in any other First Nation on being admitted;
 - (b) a Member of another First Nation who is an Indian, who has a parent, grandparent, or great-grandparent who was a Member or was listed on the Band List of any band from which the First Nation was formed, and who has agreed to give up membership in the other First Nation on being admitted; and
 - (c) an Indian who has lived in the community of the First Nation for at least ten (10) years and has the written support of at least ten (10) Electors.
- 6.2 A Spouse admitted under section 6.1(a) remains a Member if the marriage or relationship ends.

7 Non-status Descendants

- 7.1 No person who is not an Indian may be admitted to membership under this Code, except under a further amendment of this Code consented to under Part 8.

Part 4

Applications and Decisions

8 Applications

- 8.1 An application for membership shall be made in writing to the Membership Clerk by the applicant or, for an applicant under eighteen (18) years of age, by a parent, guardian, or a relative who is a Member.
- 8.2 The Membership Clerk shall acknowledge the application in writing within fourteen (14) days, and shall tell the applicant what, if anything, is missing. The applicant has sixty (60) days to provide missing documents, and that time shall be extended on request where records must be obtained from a government.

9 Proof Required

- 9.1 An application shall include, as they apply:
- (a) proof of the applicant's identity and date of birth, including a long-form birth certificate where available;
 - (b) proof that the applicant is an Indian, or has applied to be registered;
 - (c) proof of the applicant's relationship to a Member or former Member, including birth, adoption, marriage, or genealogical records, or statutory declarations of Elders or relatives where records do not exist; and
 - (d) for applications under section 6.1, the written support and agreement required by that section.

10 Decisions on Entitlement as of Right

- 10.1 For an application under section 5.1, the Membership Clerk shall verify the proof and refer the application to the Membership Committee within thirty (30) days after it is complete.
- 10.2 The Membership Committee shall confirm the entitlement and direct that the name be entered on the Membership List within thirty (30) days after the referral, unless the proof does not establish entitlement, in which case it shall give written reasons.

11 Decisions on Applications

- 11.1 For an application under section 6.1, the Membership Clerk shall post the applicant's name and the category applied under at the band office and on the website of the First Nation for thirty (30) days. Any Member may file a written objection with the Membership Committee during that time, stating specific grounds.
- 11.2 The Membership Committee shall decide the application within ninety (90) days after it is complete, after considering any objections and giving the applicant a chance to respond to them.
- 11.3 The Membership Committee shall admit the applicant if the applicant meets the requirements of section 6.1 and has provided the proof required by section 9. The Membership Committee shall not refuse an application on any ground not stated in this Code, including the applicant's character, place of residence, or the availability of land, housing, or resources.
- 11.4 The decision, with written reasons, shall be delivered to the applicant and to any objector within fourteen (14) days after it is made.
- 11.5 An applicant who is refused may apply again at any time on new evidence, and otherwise after two (2) years.

12 No Role for Council

- 12.1 Council has no authority to decide, approve, reject, or delay any application for membership or any removal from the Membership List. No member of Council shall attempt to influence the Membership Committee, the Membership Clerk, or the Appeals Officer on any individual matter.

Part 5

Elders Membership Committee and Appeals

13 Elders Membership Committee

- 13.1 There shall be an Elders Membership Committee of five (5) Elders elected by the Electors at the Annual General Assembly for staggered three (3) year terms.
- 13.2 No person may serve on the Membership Committee who is a member of Council, the Membership Clerk, or Immediate Family of a member of Council, as "Immediate Family" is defined in the Customary Election Regulations of the First Nation.
- 13.3 A member of the Membership Committee shall declare, and take no part in, any matter involving their Immediate Family or in which they have a personal interest.
- 13.4 A quorum of the Membership Committee is three (3) members. The Committee shall choose its chair, decide matters at meetings, and give written reasons.
- 13.5 The First Nation shall provide the Membership Committee with the services of a lawyer, who is not a Member, to advise it on request.
- 13.6 Council shall not interfere with, dismiss, or obstruct the Membership Committee. A member may be removed only by a majority of Electors voting at an Annual General Assembly or Special Meeting, and a vacancy shall be filled at the next Annual General Assembly or, if more than six (6) months away, by the remaining members until then.

14 Hearings

- 14.1 Before any decision to refuse an application or to remove a name under section 4.1(d), the Membership Committee shall give the person written notice of the concerns and a chance to respond in writing or in person, with a representative of their choice.

15 Right of Appeal

- 15.1 An applicant who is refused, a person whose name is removed under section 4.1(d), or an objector under section 11.1, may appeal the decision of the Membership Committee to the Appeals Officer within sixty (60) days after receiving it.

16 Appeals Officer

- 16.1 Council shall appoint by Resolution, for a term of three (3) years, an Appeals Officer who is a lawyer or a retired judge, and who is not a Member, an employee of the First Nation, or Immediate Family of a member of Council. The appointment continues unless a majority of the Electors voting at the next Annual General Assembly vote not to confirm it. If the office is vacant for more than ninety (90) days, the Election Appeal Tribunal under the Customary Election Regulations shall appoint a qualified person.
- 16.2 The Appeals Officer shall hold a fair hearing, give every party a full opportunity to be heard, and decide the appeal in writing with reasons within sixty (60) days after receiving it.
- 16.3 The Appeals Officer may confirm the decision, substitute the decision the Membership Committee should have made, or send the matter back with directions.
- 16.4 The decision of the Appeals Officer is final and binding on the First Nation, subject to judicial review by the Federal Court, and the Membership Clerk shall carry it out within ten (10) business days.
- 16.5 The First Nation shall pay the fees of the Appeals Officer.

Part 6

The Membership List

17 Maintenance of the Membership List

- 17.1 The Membership Clerk shall maintain the Membership List on behalf of the First Nation, and shall record for each Member their full name, date of birth, registration number where applicable, and the date their name was added to or removed from the list, as required by section 10(11) of the *Indian Act*.
- 17.2 The Membership List is confidential. It shall not be disclosed to any person except as this Code, the Customary Election Regulations, the Access to Information and Privacy Code, or the law requires, or with the Member's consent.
- 17.3 Each Member may see their own record on request and may ask the Membership Clerk to correct a factual error, and the Membership Clerk shall decide the request within thirty (30) days. A refusal may be taken to the Membership Committee.
- 17.4 The Membership Clerk shall provide the list of Electors to the Electoral Officer as the Customary Election Regulations require.
- 17.5 Each year, the Membership Clerk shall compare the Membership List with the Indian Register maintained by Indigenous Services Canada, shall identify persons who may be entitled under section 5.1 but are not on the Membership List, and shall write to them, where their address is known, to tell them how to apply.
- 17.6 The Membership Clerk shall publish each year, without names, the number of Members on and off the Reserves, the number of applications received, approved, refused, and pending under each category, and the average time taken to decide them.

Part 7

Rights of Members and Voluntary Resignation

18 Rights of Members

- 18.1 Every Member, wherever they live, has equal standing as a Member of the First Nation, including the right, on reaching eighteen (18) years of age, to vote and to stand for office as the Customary Election Regulations provide.
- 18.2 Residence off the Reserves shall not be used to limit any right of a Member under this Code.

19 Voluntary Resignation

- 19.1 A Member who is at least eighteen (18) years of age may resign their membership by written notice to the Membership Clerk, signed before a witness.
- 19.2 The resignation takes effect thirty (30) days after the notice is received, unless the Member withdraws it in writing before then. No approval of Council is required.
- 19.3 A former Member who resigned may apply again after three (3) years under Part 3, and the resignation does not affect any right or claim that arose before it took effect.
- 19.4 A resignation by a parent does not remove any Child from the Membership List.

Part 8

Amendments and Coming into Force

20 Amendments

- 20.1 An amendment to this Code may be initiated by Resolution of Council, or by a written request to the Electoral Officer signed by at least ten percent (10%) of the Electors setting out the proposed amendment. Council shall prepare and present an amendment requested by the Electors within sixty (60) days, in the words requested.
- 20.2 Notice of a proposed amendment, with its full text and a plain-language summary, shall be posted at the band office and on the website of the First Nation, and mailed or emailed to every Elector whose address is known, at least ninety (90) days before the vote.
- 20.3 An amendment to Part 2, Part 3, section 12, or this Part requires the consent of a majority of all Electors of the First Nation, given by referendum conducted by the Electoral Officer with mail-in voting available to every Elector, or by petition verified by the Electoral Officer.
- 20.4 Any other amendment requires the approval of a majority of the Electors who vote in a referendum conducted by the Electoral Officer with mail-in voting available to every Elector, provided that at least twenty-five percent (25%) of the Electors vote.
- 20.5 No amendment may remove from the Membership List any person who is a Member when the amendment comes into force.
- 20.6 Council has no authority to amend this Code except in accordance with this section.

21 Coming into Force and Transition

- 21.1 This Code comes into force on the date the Electoral Officer certifies in writing that a majority of the Electors of the First Nation have consented to it.
- 21.2 Every application pending when this Code comes into force shall be decided under this Code, and an applicant may add any proof needed to meet it.
- 21.3 Within ninety (90) days after this Code comes into force, Council shall hold a Special Meeting of Electors to elect the first Membership Committee, two (2) of whose members shall serve an initial term of one (1) year and two (2) an initial term of two (2) years so that terms are staggered. Until then, the members of the Elders Membership Review Panel in office continue to act as the Membership Committee.
- 21.4 Until an Appeals Officer is appointed under section 16.1, an appeal under section 15 shall be heard by a lawyer or retired judge who is not a Member, an employee of the First Nation, or Immediate Family of a member of Council, selected by Council by Resolution.
- 21.5 Council shall publish this Code on the website of the First Nation and send a copy to the Minister of Indigenous Services for the records of the Department.

Certificate of consent of the Electors

Number of Electors on the list on the date
of the vote or petition

Number of Electors consenting

Method (referendum or petition) and date

Signature of Electoral Officer

Explanatory Notes

1. Purpose

This Code amends and restates the Membership Code under which the First Nation controls its membership under section 10 of the Indian Act. These notes are not part of the Code.

2. Adoption

Under section 13 of the existing Membership Code (1986 text):

- At least twenty-five percent (25%) of the Electors deliver a written request to Council.
- Council prepares and presents the amendments.
- Notice of the proposed amendments is posted for three (3) months.
- A majority of all Electors of the First Nation consent by referendum or petition.

Section 10 of the Indian Act requires the consent of a majority of the electors of the band to establish membership rules. Section 10(4) protects persons who were entitled to be on the Band List before the rules were established.

3. Key provisions

- Every person on, or entitled to be on, the Membership List before the Code comes into force remains a Member (Part 2).
- Children of two Members, and registered children of one Member, are entitled as of right (section 5.1).
- Spouses, transfers from other First Nations, and long-term residents may apply (section 6).
- Applications are decided by an Elders Membership Committee elected by the Electors. Council has no role in individual decisions (sections 12, 13).
- Applications may not be refused on grounds not stated in the Code (section 11.3).
- Appeals to an independent Appeals Officer, subject to judicial review (sections 15, 16).
- Entitlement rules may be amended only with the consent of a majority of all Electors (section 20.3).

4. Changes from the existing Membership Code (1986 text)

1986 section	1986 provision	2026 provision
4.1	Persons on the Band List before the Code remain members	Kept (3)
5.1	Listed categories of persons who lost status under former Indian Act provisions	Any person who lost membership under a repealed or amended provision, and their registered children (5.1(c), (d))
5.3(a)	Child of two members entered on proof	Kept (5.1(a))
5.3(b), (c)	Child of one member may apply with the member parent's written approval	Entitled as of right if registered (5.1(b))
5.2	Indian spouse of a member may apply	Kept. Spouse includes a common-law partner of one year (6.1(a), 2.1(m))
6.1	Persons cohabiting with members not eligible	Replaced by the definition of Spouse
7.2	Elders Membership Review Panel of five Elders over 50, appointed by Council	Elders Membership Committee of five Elders over 50, elected by the Electors (13)
7.3	Criteria including good character, intent to reside on Reserves, and sufficiency of land and housing	Criteria stated in the Code only (11.3)
8.1 to 8.5	Council hearing. Decision final and not subject to appeal	Appeals Officer. Judicial review by the Federal Court (15, 16)
9.1 to 9.6	Annual vote. Approval by 50% of the Electors of the Band for each applicant	Removed
10.2	Council approves a member's resignation	Resignation effective 30 days after notice (19)
13.1	Amendments prepared on written request of 25% of Electors	Written request of 10% of Electors, or Council Resolution (20.1)
13.3	Consent of a majority of the Electors of the Band	Kept for entitlement rules. Majority of votes cast with 25% participation for other amendments (20.3, 20.4)

5. Legal sources

Source	Provision
Indian Act, s. 10(1), (2)	A band may establish membership rules and a mechanism for reviewing membership decisions with the consent of a majority of the electors of the band
Indian Act, s. 10(4), (5)	Rules may not remove a person who was entitled to be on the Band List immediately before the rules were established, by reason only of a situation or action before the rules came into force
Indian Act, s. 10(6), (8)	Notice to the Minister. Rules have effect from the day notice is given
Indian Act, s. 10(9) to (11)	The band maintains its own Band List and records the date each name is added or deleted
Constitution Act, 1982, s. 35	Recognition and affirmation of Aboriginal and Treaty rights

6. Records required before adoption

- The Membership Code as in force, with any amendments since its adoption.
- The number of Electors on the Membership List, for the consent requirement in section 13.3 of the existing Code.